

TERMS AND CONDITIONS

Lessor hereby rents to Customer the equipment described on this Agreement ("Equipment") subject to the provisions of this Agreement. "Customer" means the person signing this Agreement and any other person or organization to whom charges are billed, his employer, or partner, all of whom shall be jointly and severally liable hereunder.

1. **Equipment is the property of Lessor and except as otherwise provided herein**, shall be returned by Customer in the same condition as received, ordinary wear and tear excepted, to the place from which rented on the day specified or sooner upon Lessor's demand, if Customer breaches the Lease Agreement.

2. Customer shall pay Lessor on demand at the sales office of LSR Equipment Enterprises, LLC herein all rental, time, mileage, service, transportation, refueling service, and other charges and sums in accordance with this Agreement, all sales and use taxes imposed in respect to Equipment and this Agreement, and expenses, including reasonable attorney's fees, incurred in collecting same. The basic daily, weekly, and monthly rental shall allow customer either (8) hours of equipment use in a 1-day/24-hour period. Customers are allowed forty (40) hours of equipment use within a 1-week/7-day time period. Customers are allowed One Hundred Sixty (160) hours of use in a month/28-day time period. If a customer exceeds the hours set forth above, then Customer will be charged for the amount of over hours used. For example, if a Customer uses between 1-8 additional hours in a monthly rental, Customer will be charged an extra day's rate. If a Customer uses 9-40 additional hours in a monthly rental, Customer will be charged an additional week's rate worth of rent. If Customer uses 41-80 additional hours in a monthly rental, Customer will be charged for an additional two weeks' worth of rent. If a Customer uses 80-160 hours additional hours in a monthly rental, Customer will be charged for an additional one month's worth of rent; plus taxes. Lessor shall have a lien as allowed by law for charges incurred hereunder upon premises and improvements upon which Equipment is employed. Shipping charges from such location to destination and return and all loading, unloading, assembling, and dismantling shall be paid by Customer. All rates are subject to change on thirty (30) days notice in writing to the Customer.

3. Notwithstanding any other terms in this Agreement, **LSR Equipment Enterprises, LLC hereby grants to Customer the option to purchase the Equipment identified on the front of this agreement as having a purchase option price for the purchase option price shown on page 1 of this Lease Agreement. CUSTOMER MAY EXERCISE THIS OPTION BY PROVIDING WRITTEN NOTICE TO LSR EQUIPMENT ENTERPRISES, LLC, TOGETHER WITH FULL PAYMENT OF THE OPTION PRICE, ON OR BEFORE THE RENTAL PURCHASE OPTION (RPO) DATE, SET FORTH ON THE FIRST PAGE OF THIS RENTAL AGREEMENT. IN THE EVENT THAT CUSTOMER FAILS TO EXERCISE THE RENTAL PURCHASE OPTION (RPO) ON THE DATE SET FORTH IN THE RENTAL AGREEMENT, THEN CUSTOMER AGREES TO IMMEDIATELY RETURN THE EQUIPMENT TO LSR EQUIPMENT ENTERPRISES, LLC.**

4. **Equipment shall be used solely in Customer's business and kept only at its place of business or job site, and shall not be moved without prior written consent of Lessor.** Equipment shall be used only within its rated capacity by safe, careful, and competent personnel. Customer shall notify Lessor immediately of any accident, damage, or failure involving Equipment, and promptly furnish Lessor all information in writing and assistance required. Equipment shall NOT be used or operated: (A) to carry persons for hire; (B) to carry persons other than drivers or helpers employed by customer, (unless authorized by Lessor on the reverse side), who shall ride only within the cab, and then only if such carriage is lawful; (C) to transport property for hire, unless Customer obtains all permits and licenses; (D) in violation of any law or ordinance or in any speed contest; (E) for the carrying or hauling of explosives or other hazardous articles. **IF EQUIPMENT IS USED IN VIOLATION OF THIS PARAGRAPH, OR IS OBTAINED FROM LESSOR BY FRAUD OR MISREPRESENTATION, OR IS USED IN FURTHERANCE OF ANY ILLEGAL PURPOSE, ALL USE OF EQUIPMENT IS WITHOUT LESSOR'S PERMISSION.**

5. Customer shall perform and pay all normal periodic and other basic service, adjustments and lubrications of Equipment, including but not limited to: checking of Equipment before each shift; checking and maintaining crankcase, transmission and cooling systems daily; checking tire pressures and battery fluid and charge levels weekly. If equipment fails to operate properly or needs repair, Customer shall immediately cease using the Equipment and notify Lessor. If, upon inspection, the equipment has a major mechanical failure (if not caused by Customer, either negligently or intentionally), then Lessor shall be responsible for the cost of repair. However, if said equipment needs repair as a result of improper or negligent use by Customer, then Customer shall be responsible for the cost of repair. In said event, both parties expressly agree that all repairs to the equipment shall be considered "actual running repairs" associated with completing the repairs at a reasonable cost, which are necessary to return the equipment to a working condition, so it is available for performance of the work it was originally leased for. During the time the equipment is being repaired, Customer shall still be responsible for and pay for any monthly rentals due on said equipment, herein referred to as "downtime rental", if the cost of the damage to the equipment was the result, either directly or indirectly, of the negligence or other act of Customer while the equipment was in Customer's possession and control.

6. With respect to equipment, all loss of or damage thereto from any cause whatsoever (other than major mechanical failure, as set forth in paragraph 5) while on rental or in Customer's care, custody and control, whether or not due to fault of Customer, including but not limited to fire, flood, theft, comprehensive losses, collision and upset, and acts of God, shall be the sole responsibility of the customer and shall be paid to Lessor promptly upon receipt of invoice. Customer further agrees, at Customer's sole cost and expense, to secure and maintain in force during the entire term of this Agreement, insurance satisfactory to Lessor for the benefit of Lessor against all the foregoing risks, subject to the provisions of Section 7 below. Notwithstanding the foregoing provisions of this Article 5, customer shall be liable for all resulting loss and expense of Lessor if equipment is used or operated without Lessor's permission or in violation of this agreement or is lost or damaged under any of the following circumstances: (i) use of operation of Equipment, or improper loading, with a load exceeding the rated capacity of Equipment, or improperly securing such load or improper coupling; (ii) failure of customer to perform or pay for all normal periodic and other basic service, adjustments and lubrication of Equipment, (iii) use or operation of Equipment in a manner inconsistent with the Manufacturer's instructions; (iv) loss of or damage to Equipment during periods of riot, strike or civil commotion; (v) reckless, or abusive use or operation of Equipment and/or, (vi) striking overhead objects; (vii) loss or damage occurring during the loading, unloading or transportation of Equipment, unless such loss or damage (excluding damage caused by the striking of overhead objects, which customer assumes) occurs as a direct result of a collision with a licensed motor vehicle being operated by a third party and the loading, unloading and transportation was conducted in a lawful manner, provided, however, that all loss or damage occurring during the course of waterborne transportation is at Customer's sole risk; (viii) use or operation of Equipment in a hostile or warlike manner in time of peace or war; (ix) loss or damage to tires or tools unless caused by fire, windstorm, vandalism or malicious mischief or is coincident with other protected loss or damage; (x) loss or damage by nuclear reaction, nuclear radiation, or radioactive contamination, all whether controlled or uncontrolled and whether such loss or damage be direct or indirect, proximate or remote, or be in whole or in part caused by, contributed to or aggravated other protected loss or damage; (xi) boom damage from overloading of a boom or from a collision involved when the boom is in motion; (xii) disappearance of equipment or theft or conversion of equipment not documented by customer's prompt filing with the applicable public authorities (with a copy to Lessor) of a formal written theft or conversion report, and any other failure of customer not to comply with Article 12 of this Agreement; (xiii) loss or damage due to Lessee's failure to properly secure equipment while on rental or in Lessee's care, custody, and control; or (xiv) all loss or damage associated with equipment's upset.

AGREED TO: Angelo Kirchon
Customer

9/08/2025
Date

7. Customer shall, at its expense, during the term hereof, maintain in force for all equipment rentals a commercial general liability policy and property damage insurance with bodily injury and death liability amounts of \$1,000,000.00 for each occurrence, \$2,000,000.00 general aggregate and property damage liability limits based on replacement value of equipment on a primary and not access or contributory basis, against its liability for damage sustained by any person or persons, including but not limited to employees of Customer, as a result of the maintenance, ownership, use, operation, storage, erection, dismantling, servicing, or transportation of Equipment. **A copy of said insurance requirements for leased equipment has been provided to Customer at the time they entered into this Rental Agreement.** Customer shall name Lessor as "Loss Payee" on said insurance during the term of this Rental Agreement, with an effective date the first day of the Rental Term. Customer hereby waives any and all rights of recovery, claims, actions, or causes of action against Lessor, its agents, officers, or employees, for any loss or damage that may occur pertaining to the rental equipment, or any personal property Customer owns (during the time the rental equipment is in Customer's possession) by reason of fire, the elements, or any other cause which is or would be insured against under the terms of the property insurance policy carried or required to be carried under the terms of this Rental Agreement by the respective parties hereto, regardless of cause or origin, including negligence of the Customer, its agents, officers, or employees. Customer agrees that no insurer shall hold any right of subrogation against Lessor (and all such insurance policies shall be amended or endorsed to reflect such waiver of subrogation.) This waiver of subrogation provision shall be effective to the full extent, but only to the extent that it does not impair the effectiveness of insurance policies of Lessor and Customer. Customer agrees to abide by the provisions of said policy and to notify Lessor and the insurer of any accident or occurrence involving Equipment immediately by telephone, and thereafter to promptly report to them in writing all information relevant thereto. Customer, its agents and employees shall cooperate fully with Lessor and Customer's insurer in the investigation, prosecution and/or defense of any claim or suit and shall do nothing to impair or invalidate the applicable insurance coverage. Lessor's acquiescence in Customer's certificate(s) of insurance shall not be a waiver of customer's insurance and indemnity obligations hereunder.

8. Customer shall defend, indemnify and hold harmless Lessor, its subsidiary and affiliated companies, their officers, agents, and employees, from and against all loss, liability, claim, action or expense including reasonable attorneys fees by reason of bodily injury including death, and property damage, sustained by any person or persons, including but not limited to employees of Customer a result of the maintenance, ownership, use, operation, storage, erection, dismantling, servicing or transportation of Equipment, or Customer's failure to comply with the terms of this Agreement.

9. Customer shall, at its expense, comply with all state, federal and local laws and regulations affecting Equipment and its use, operation, erection, design and transportation including licensing and building code requirements and shall defend and indemnify and hold harmless Lessor, its subsidiaries and affiliated companies and their officers, agents and employees from all loss, liability or expense resulting from actual or asserted violations of any such law, requirements, and regulations.

10. This is a contract of rental and is not assignable by Customer, and Customer shall not be deemed an agent or employee of Lessor for any purpose. Customer shall not suffer any liens or encumbrances to attach to Equipment, and shall defend, indemnify and hold Lessor harmless from all loss, liability and expense by reason thereof. Use of Equipment by persons other than Customer or its employees approved in writing in advance by Lessor shall be at Customer's sole risk. Lessor shall not be liable for loss of or damage to any property left stored, loaded or transported by Customer or any other person in or upon Equipment, whether or not due to the negligence of Lessor, its agents and employees. (a) at any time whether Equipment then be in the physical possession of Customer, or Lessor or anyone else, or (b) at any place, including without limitation any of Lessor's garages or locations. Customer hereby assumes all risk of such loss or damage and waives all claims against Lessor by reason thereof, and agrees to indemnify and hold harmless Lessor, its subsidiary and affiliated companies, their officers, agents and employees, from and against all loss, liability, claim, action, or expense, including reasonable attorney's fees arising out of such loss or damage.

11. LESSOR WILL IN NO EVENT HAVE LIABILITIES FOR DAMAGES AS A RESULT OF THE SUPPLYING OF EQUIPMENT OR ITS USE OR THE FURNISHING OF ANY SERVICE HEREUNDER.

12. This instrument expresses the entire agreement between the parties. Customer's execution of this instrument and/or acceptance of delivery of any part of Equipment to be furnished hereunder will constitute Customer's acceptance of the provisions contained herein, and the exclusion of any terms and conditions otherwise stated by Customer or contained in Customer's purchase documents which conflict with or limit the provisions contained herein.

13. In the event of a loss, theft, or damage to Equipment, Customer agrees to notify Lessor immediately by telephone, and thereafter to promptly report in writing to Lessor and the public authorities (where required by law or by Lessor) all information relating thereto. Customer shall cause its agents and employees to give Lessor and the public authorities proper and full information and assistance in the investigation and prosecution of any matter resulting from said loss, theft, or damage.

14. Should customer fail to pay any invoice to Lessor in accordance with the terms of Lessor's invoice, Customer shall pay to Lessor interest on such delinquent payment until paid at the lesser of 18% or the maximum rate allowable by the laws of the jurisdiction in which Lessor's branch office renting the Equipment is located. **In case of default by Customer or if Lessor deems itself insecure, Lessor may enter premises where Equipment is located and render inoperative or remove same with or without process of law and without notice or liability to Customer, and may cancel this Agreement without prejudice to any remedies or claims which Lessor might otherwise have for arrears of rent (or the maximum amount of interest allowed by law), expense of retaking, court costs and reasonable attorney's fees, and in addition a sum equal to the balance of the rent, 18% annual interest rate, and other payments called for hereunder for the remainder of the rental term, as liquidated damages and not as a penalty.** Customer shall remain liable for the Equipment or for any loss or injury to the Equipment, as well as past-due or downtime rentals that are still outstanding and have not been paid by Customer, notwithstanding such termination. **Lessor hereby reserves for itself all remedies provided by law, including, but not limited to, rights to cancel this Agreement, repossess the Equipment, accelerate rents provided for in this Agreement and sell or re-lease the Equipment, at Lessor's option, in case of default by Customer. Customer will pay all of Lessors costs and expenses incurred in connection with the default by Customer, including but not limited to costs and expenses of repossession, storing, holding, transporting, insuring, servicing, repairing, maintaining, renting, and selling the Equipment and fees and expenses of attorney's (including cost of appeal and costs of enforcing guarantees) and other persons employed by Lessor in connection with the enforcement of this Agreement.**

15. When provided to Customer, Equipment is in good mechanical condition. Customer shall examine Equipment promptly upon delivery and promptly notify Lessor of any evidence that Equipment is not in such condition. If during Customer's use of Equipment during the terms of this Agreement or any extensions thereof, Equipment is found by Customer not to be in good mechanical condition, as a result of conditions not the responsibility hereunder, of Customer nor caused by the fault or negligence of Customer or Customer's employees or agents, Customer will notify Lessor, whereupon Lessor will then at its option and without any other liability or responsibility by Lessor to Customer (a) repair or suitably replace Equipment within a reasonable time during Lessor's normal working hours, with the commencement or running of term of this Agreement to be tolled for the period Equipment is "down," or (b) remove Equipment and terminate this Agreement and refund prepayments of rental charges, if any, for the unexpired term of the Agreement, less whatever is due Lessor for damage to or maintenance of Equipment which is the responsibility of Customer. Customer agrees to provide full access to Equipment to Lessor's representatives so as to enable Lessor to meet its responsibilities hereunder. Notwithstanding the foregoing provisions of this Article 14, Customer agrees to indemnify, and hold harmless Lessor, its subsidiary and affiliated companies, and their officers, agents, and employees to the extent provided in the other terms and conditions of this Agreement.

Angelo
Kirchon

9/08/2025

AGREED TO:

Customer

Date

16. THE FOREGOING IS IN LIEU OF (i) ALL WARRANTIES EXPRESS, IMPLIED OR STATUTORY, INCLUDING BUT NOT LIMITED TO, THE IMPLIED WARRANTY OF MERCHANTABILITY AND THE IMPLIED WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; AND (ii) ALL OBLIGATIONS OR LIABILITIES ON THE PART OF LESSOR FOR DAMAGES INCLUDING, BUT NOT LIMITED TO, INDIRECT, INCIDENTAL, CONSEQUENTIAL OR SPECIAL DAMAGES ARISING OUT OF OR IN CONNECTION WITH THE LEASING, MAINTENANCE, USE, OPERATION, STORAGE, ERECTION, DISMANTLING, OR TRANSPORTATION OF EQUIPMENT.

17. FORCE MAJEURE CLAUSE. LESSOR WILL NOT BE LIABLE FOR ANY OF THE FOLLOWING ACTS THAT OCCUR DURING THE LEASING, PERFORMANCES OR USE OF EQUIPMENT AND SERVICES, AS PROVIDED HEREUNDER. Any failure of performance by Lessor which is due to causes beyond Lessor's control, including but not limited to acts of civil or military authority, Acts of God, labor difficulties, failure of transportation, and delays of suppliers shall not be deemed to be a default by Lessor.

18. Customer shall obtain a release number from Lessor at the location Equipment was rented from when it is ready for return to Lessor. Customer shall be responsible for securing equipment from loss, theft, and damage until Equipment is picked up by Lessor. Customer agrees to return Equipment with full fuel tank(s). If Customer returns Equipment with the fuel tank(s) less than full, Customer shall pay to Lessor a sum equal to the Lessor's refueling service charge at the Lessor location where Equipment is returned for the number of gallons that the tank(s) is (are) short at the time of return. Customer further agrees to pay for all towing expenses, if it becomes necessary to tow the Equipment.

19. At the end of the Lease Term, or if Customer breaches said Lease Agreement, Customer shall immediately return the equipment to Lessor, at Customer's cost and expense. **In the event Customer fails and/or refuses to return the equipment at either the end of the Lease or upon a breach of the Lease by Customer; then Customer will be deemed to have converted the equipment to its own use, dominion, and control. In said event, Customer shall be liable for all damages resulting from said conversion, whether actual or punitive, including all costs, expenses and attorney's fees to reacquire said equipment.**

20. TO THE EXTENT PERMITTED BY APPLICABLE LAW, CUSTOMER HEREBY WAIVES ANY AND ALL RIGHTS AND REMEDIES GRANTED TO CUSTOMER BY ARTICLE 2A OF THE UNIFORM COMMERCIAL CODE.

21. To the extent permitted by applicable law any action for default under this Agreement brought by Customer, including any action for breach of warranty or indemnity, must be commenced within one year after the cause of action accrued.

AGREED TO: Angelo
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9/08/2025

Date